

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
GLORIA TORRES, as Administrator of the Estate of KADEEM
JABARIE TORRES,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity;
NYPD Officer JOHN DOE #1; NYPD Sergeant
JOHN DOE #2; and JOHN and JANE DOES #
3,4,5, etc.,

Defendants.

Index No.

**Plaintiff designates
Kings County as the
place of trial**

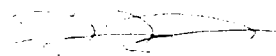
SUMMONS

**The basis of venue is
LOCATION OF
OCCURRENCE**

-----X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED TO ANSWER the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: January 22, 2018


Jon L. Norinsberg
Attorney for Plaintiff
225 Broadway, Suite 2700
New York, New York 10007
(212) 227-5700

Defendant(s)' Address:

The City of New York
100 Church Street
New York, NY 10007

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VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff designates Kings County
as the place of trial. The basis of
the venue as Kings County is the
place where the cause of action
arose.

Plaintiff GLORIA TORRES, as Administrator of the Estate of KADEEM TORRES, by
her attorneys, Law Offices of Jon L. Norinsberg, PLLC, as and for the Complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This action is brought by the Estate of Kadeem Torres who was shot and killed by
New York City Police Department ("NYPD") officers on February 16, 2017, at 890 Belmont
Avenue, in the County of Kings, in the City and State of New York.

2. Mr. Torres, who was a minor at the time of his death, was shot several times by
NYPD officers after an alleged incident occurred at the intersection of Blake Avenue and Logan
Street, in the County of Kings, in the City and State of New York.

3. Mr. Torres' family members were not present at the time he was killed and made
immediate efforts to learn about the events that led to his death. Those year-long efforts have
resulted in very little disclosure of a documents pertaining to Mr. Torres' death. The family's
efforts to secure copies of police reports and surveillance recordings documenting the
circumstances of Mr. Torres's death remain unfulfilled to date.

4. Mr. Torres' estate now seeks redress pursuant to New York State law and Federal law for the injuries caused by the conduct of the officers involved.

5. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

6. Plaintiff seeks (i) compensatory damages for wrongful death, physical injury, psychological and emotional distress, and financial loss caused by the illegal actions of the defendants; (ii) punitive damages to deter such intentional or reckless deviations from well-settled law; and (iii) such other and further relief, including costs and attorneys' fees, as this Court deems equitable and just.

JURISDICTION AND VENUE

7. This action is brought for violations of Mr. Torres' rights under New York State common and statutory law, as well as violations of Mr. Torres' constitutional rights under Federal law.

8. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

9. Pursuant to CPLR §§ 503 and 504, venue is proper in Kings County because it is the county in which Gloria Torres was appointed administrator of the Estate of her son and where the events giving rise to this action took place.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

10. Plaintiff served a Notice of Claim upon the City of New York on April 27, 2017, within ninety days of the events giving rise to the claims contained therein.

11. On January 17, 2018, Plaintiff GLORIA TORRES, as Administrator of the Estate

of Kadeem Torres, appeared for an examination pursuant to § 50-h of New York's General Municipal Law.

12. More than thirty days have elapsed since Plaintiff served his Notice of Claim and the City has not offered adjustment or payment thereof.

13. At the time the Notice of Claim was filed, Plaintiff was unable to obtain the names of the NYPD officers involved in the events on February 16, 2017 that resulted in the death of Kadeem Torres.

14. As of the filing of this Complaint, Plaintiff is still unable to obtain the names of the NYPD officers involved in the events on February 16, 2017 that resulted in the death of Kadeem Torres. Plaintiff intends to file an amended complaint naming these individual officers as defendant in the action as soon as their identities becomes known.

JURY DEMAND

15. Plaintiff demands a trial by jury in this action on each and every one of his claims for which jury trial is legally available.

THE PARTIES

Plaintiff

16. KADEEM TORRES, was a 17-year-old high school student who resided with his mother Gloria Torres. At the time of his death on February 16, 2017, he resided at 721 Willoughby Avenue, in the County of Kings, in the City and State of New York.

17. GLORIA TORRES, KADEEM TORRES's mother, was appointed by the Surrogate's Court of Kings County as the Administrator of Mr. Torres' Estate. She continues to reside at 721 Willoughby Avenue, in the County of Kings, in the City and State of New York.

Defendants

18. THE CITY OF NEW YORK (the "City") is a municipal entity created and authorized under the laws of the State of New York.

19. The City is authorized by law to maintain a police department, and does maintain the New York City Police Department (“NYPD”) which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers and detectives.

20. Defendant NYPD Officer JOHN DOE #1 and NYPD Sergeant JOHN DOE #2 are employees of the City of New York, who unlawfully shot and killed Mr. Torres. They are sued in their individual and official capacities as NYPD Police Officers, as a result of their unlawful acts, said officers assaulted and battered Mr. Torres, and violated his constitutional rights.

21. Defendants JOHN and JANE DOES #3, 4, 5, etc., are NYPD police officers, sergeants, and employees who unlawfully assaulted, battered, and/or failed to prevent the assault and battery on Mr. Torres, leading to his death.

22. At all times relevant herein, defendants JOHN DOE #1, JOHN DOE #2, and JOHN and JANE DOES #3, 4, 5, etc. have acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the City and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the City and/or the NYPD.

STATEMENT OF FACTS

23. On February 16, 2017, at approximately 4:00 P.M., plaintiff KADEEM TORRES was lawfully present at the intersection of Blake Avenue and Logan Street, in the County of Kings, in the City and State of New York.

24. At the aforementioned time and place, defendant police officers JOHN DOE # 1 – 3, approached plaintiff with the guns drawn.

25. Defendant police officers JOHN DOE # 1 – 3 were in plain clothes, and did not identify themselves as police officers. Plaintiff KADEEM TORRES had no idea that these

defendants were police officers.

26. Fearing for his life, with the distinct possibility that police officers JOHN DOE # 1 – 3 were going to rob him, and/or were gang-members, plaintiff KADEEM TORRES ran away from the scene.

27. A three-block chase then ensued, during which time plaintiff KADEEM TORRES was shot in the back multiple times, as well as in other parts of his body.

28. Plaintiff KADEEM TORRES came to rest in the back stairwell of 890 Belmont Avenue, in the County of Kings, in the City and State of New York, where he was found dead.

29. On February 17, 2017, the Office of the Chief Medical Examiner of the City of New York (hereinafter "ME's Office") performed an autopsy of plaintiff KADEEM TORRES, finding that the cause of death was from gunshot wounds to his head/neck, torso, and upper extremity.

30. The manner of death was deemed a "homicide (shot by police)."

31. Thereafter, defendant police officers gave highly false and misleading accounts of the incident to their superiors, and to the Kings County District Attorney's Office.

32. In connection with the incident, defendant police officers also filed false and misleading reports with their superiors and the Kings County District Attorney's Office, lying about critical facts which led up to the shooting and attempting to conceal their own unlawful conduct.

Plaintiff Suffered a Deprivation of Federal Civil Rights Under 42 U.S.C. § 1983

33. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.

34. All of the aforementioned acts deprived plaintiff KADEEM TORRES of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth,

and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

35. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

36. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

37. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

FIRST CAUSE OF ACTION

(Assault)

38. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

39. Defendants without just cause, willfully and maliciously threatened to use physical force against Mr. Torres, causing him to fear imminent bodily harm and ultimately causing his death.

40. Defendants committed the foregoing acts intentionally, willfully, and with a calious disregard for plaintiff's rights, and are therefore liable for punitive damages.

SECOND CAUSE OF ACTION

(Battery)

41. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

42. Defendants without just cause, willfully and maliciously used physical force

against Mr. Torres, causing him to suffer harmful, offensive bodily contact, and causing his death.

43. There was no excuse or justification for defendants' unlawful use of excessive force.

44. Defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for Mr. Torres' rights, and are therefore liable for punitive damages.

THIRD CAUSE OF ACTION
(Wrongful Death)

45. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

46. The acts of the Defendants, alleged herein, wrongfully caused the death of plaintiff KADEEM TORRES.

47. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

48. As a consequence, Plaintiff has suffered damages in an amount to be determined at trial.

FOURTH CAUSE OF ACTION
(Conscious Pain and Suffering)

49. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

50. The acts of the Defendants, alleged herein, wrongfully caused and permitted Mr. Torres to suffer physical, mental, and emotion pain, continuing until his death.

51. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

52. After being shot a number of times, Mr. Torres remained conscious and endured extreme pain and suffering, prior to his death.

53. As a direct and proximate result of Defendants' deprivations of Mr. Torres' rights, Mr. Torres' distributes have suffered damages in an amount to be determined at trial.

FIFTH CAUSE OF ACTION
(Respondent Superior)

54. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

55. At all relevant times, Defendant Officers JOHN DOE #1 - 3, were employees of the City and were acting within the scope of their employment.

56. The CITY OF NEW YORK is therefore vicariously liable under the doctrine of *respondent superior* for the actions of Defendant Officers JOHN DOE #1 – 3 as set forth herein.

SIXTH CAUSE OF ACTION
(Excessive Force Under 42 U.S.C. § 1983)

57. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

58. The level of force employed by defendants was objectively unreasonable and in violation of plaintiff KADEEM TORRES' constitutional rights.

59. As a result of the foregoing, plaintiff KADEEM TORRES sustained, *inter alia*, severe pain and suffering, loss of life, bodily injuries, emotional distress, and deprivation of his constitutional rights.

SEVENTH CAUSE OF ACTION
(Failure to Intervene Under 42 U.S.C. §1983)

60. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

61. Defendant police officers had an affirmative duty to intervene to protect the constitutional rights of plaintiff KADEEM TORRES from being violated by other police officers

in their presence.

62. Defendant police officers violated plaintiff KADEEM TORRES' constitutional rights in the presence of their police colleagues.

63. Defendant police officers had reason to know plaintiff KADEEM TORRES' constitutional rights were being violated.

64. Defendant police officers had a realistic opportunity to intervene to prevent the harm from occurring to plaintiff KADEEM TORRES but failed to do so.

65. Notwithstanding this opportunity, defendant police officers failed to intervene to prevent the violations of plaintiff KADEEM TORRES' constitutional rights.

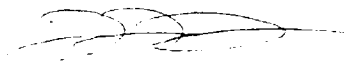
66. As a result of the foregoing, plaintiff KADEEM TORRES sustained, *inter alia*, severe pain and suffering, bodily injuries, loss of life, emotional distress, and deprivation of his constitutional rights.

DEMAND FOR RELIEF

WHEREFORE, plaintiff GLORIA TORRES demands judgment against the defendants as follows:

- (1) On all causes of action, compensatory damages in the amount of \$10,000,000.00; and
- (2) On all causes of action, punitive damages in the amount of \$10,000,000.00.
- (3) Costs and disbursements of this action, including attorney's fees, and for such other and further relief as to this Court may deem just and proper.

Dated: New York, New York
January 22, 2018



JON L. NORINSBERG
Attorney for Plaintiff
225 Broadway, Suite 2700
New York, New York 10007
(212) 791-5396

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SUMMONS & COMPLAINT

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